



Republic of the Philippines  
Province of Laguna  
City of Biñan



**OFFICE OF THE CITY COUNCIL SECRETARY**

2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna  
(049) 513-5063 / 513-5064

**EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED 24 OCTOBER 2022.**

**PRESENT:**

|                                      |                                     |
|--------------------------------------|-------------------------------------|
| Hon. ANGELO B. ALONTE                | - City Vice Mayor/Presiding Officer |
| Hon. LIBUNERO O. ALATIIT             | - Councilor                         |
| Hon. ROMMEL R. DICDICAN              | - Councilor                         |
| Hon. FLAVIANO D. PECAÑA, JR.         | - Councilor                         |
| Hon. CHRISTOPHER A. ALBA             | - Councilor                         |
| Hon. JAYSON A. SOUZA                 | - Councilor                         |
| Hon. VICTOR L. CARIÑO                | - Councilor                         |
| Hon. ELMARIO B. DIMARANAN            | - Councilor                         |
| Hon. RAFAEL L. CARDEÑO, JR.          | - Councilor                         |
| Hon. ELVIS L. BEDIA                  | - Councilor                         |
| Hon. JOSE FRANCISCO RUBEN P. YATCO   | - Councilor                         |
| Hon. RODOLFO C. MONTAÑEZ, JR.        | - ABC-Federation President          |
| Hon. MA. ANGELICA QUERUBIN A. ALONTE | - SK-Federation President           |
| GERONIMO D. ROMANTIGUE, MDMG         | - City Council Secretary            |

**GUESTS:**

Legislative Staff of the City Government of Biñan

**ABSENT:**

|                        |                                 |
|------------------------|---------------------------------|
| Hon. JONALINA R. REYES | - Councilor (Official Business) |
| Hon. ALVIN Z. GARCIA   | - Councilor                     |

**CITY ORDINANCE NO. 12-(2022)**

**AN ORDINANCE ESTABLISHING THE CREATION OF THE BARANGAY CHILDREN'S ASSOCIATION (BCA) IN EVERY BARANGAY IN THE CITY OF BIÑAN, PROVIDING FUNDS THEREFOR AND FOR OTHER PURPOSES.**

**Authored by: HON. RAFAEL L. CARDEÑO, JR.**

**WHEREAS**, it is the declared policy of the State to promote and protect the physical, moral, spiritual, intellectual, and social well-being of children and to *inculcate* in the youth patriotism and nationalism, and encourage their involvement in public and civic affairs;

**WHEREAS**, Article 4.6 of Presidential Decree No. 603 otherwise known as the "*Child and Youth Welfare Code*" declares it the responsibility of every child, regardless of birth, sex, religion, social status, political antecedents and other factors, shall participate actively in civic affairs and in the promotion of general welfare, always bearing in mind that it is the youth who will eventually be called upon to discharge the responsibility of leadership in shaping the nation's future;

**WHEREAS**, Article 2 Section 2 of the Comprehensive Child Welfare Code of the City of Biñan, Laguna provides that children in the family, school, community or other organization or institution *shall be heard*; that children regardless of sex, age and ethnicity has the right to

express his or her opinion freely and to have that opinion taken into account in any matter or procedure affecting the child;

**WHEREAS**, Chapter II Section 4 of R.A. 10742 otherwise known as the "*Sangguniang Kabataan Reform Act of 2015*" defines that the Katipunan ng Kabataan shall, amongst other qualifications, be composed of citizens who are at least fifteen (15) but not more than thirty (30) years of age;

**WHEREAS**, children ages fourteen (14) and below do not have a direct influence in their representation in community issues and matters concerning them;

**WHEREAS**, DILG Joint Memorandum Circular No. 2019-01 which pertains to the *Revised Child-Friendly Local Governance Audit and Implementation Guideline* establishes child representation in the Local Council for the Protection of Children (LCPC) and the development of policy and programs, projects, and activities with children's participation in the planning, implementation or monitoring phase as criteria for CFLGA assessment;

**WHEREAS**, there is a need to establish an organization bearing the express objective of providing a platform for children aged fourteen (14) and below to express their views and opinions, to obtain information pertaining to issues regarding their concerns, and to enable them to participate in public and civic affairs as well as local governance – thus enabling them to grow and develop as active and productive members of their community.

**NOW THEREFORE**, be it ordained by the Sangguniang Panlungsod, in session assembled, THAT:

**SECTION 1. Title.** This Ordinance shall be known as the "*Barangay Children's Association Ordinance*".

**SECTION 2. Definition of Terms.** For the purposes of this Ordinance, the following terms are hereby defined:

- (a) **Child/Children** – refers to a person whose ages range from fourteen (14) below or one over said age range and who, upon evaluation of a qualified psychologist or psychiatrist, is found to be incapable of taking care of himself fully because of a physical or mental disability or condition or of protecting himself from abuse.
- (b) **BCA** – Barangay Children's Association.
- (c) **CSWDO** – City Social Welfare and Development Office.

**SECTION 3. Composition.** There shall be in every barangay a Barangay Children's Association (BCA) composed of all children who have been residing in the barangay for at least six (6) months.

**SECTION 4. Duties, Functions and Responsibilities of Officers.** The members of every BCA shall elect from amongst themselves the following officers with the corresponding duties, functions and responsibilities:

**a. Chairperson**

- i. Call and preside over the meetings of their organization.
- ii. Serve as the spokesperson for the organization.
- iii. Represent the organization in the Barangay Council for the Protection of Children (BCPC).
- iv. Exercise general supervision over the affairs and conduct of their BCA officials and members.
- v. Ensure the implementation of policies, programs, and projects.
- vi. Exercise such other duties, functions, and responsibilities as may be resolved by the officials of the organization.

**b. Vice-Chairperson**

- i. Assist the Chairman in the performance of the latter's duties, functions and responsibilities.
- ii. Assume the role of acting Chairman in instances when the Chairman is absent or is unable to carry out his or her defined duties, functions and responsibilities.

**c. Secretary**

- i. Keep all the records of the organization.
- ii. Prepare and keep all the minutes of all meetings.
- iii. Compose letters and other such documents needed by the organization.
- iv. Schedule and arrange meetings and conferences for the organization, including travel arrangements if needed.
- v. Assist in the preparation of all reports and presentations.
- vi. Exercise such other duties, functions, and responsibilities as may be resolved by the officials of the organization.

**d. Treasurer**

- i. Take custody of all property and funds acquired by the organization
- ii. Collect and receive contributions, monies, materials and all other resources collected or received and maintain a record of all such transactions.
- iii. Disburse funds and pay bills promptly as approved by the officers.
- iv. Inform the organization of its financial status and capabilities.
- v. Exercise such other duties, functions, and responsibilities as may be resolved by the officials of the organization.

**e. Advocacy Leads**

- i. There shall be in every BCA four (4) advocacy leads who will take the lead in the formulation of policies and plans, projects, and programs on the following matters:
  1. **Growth & Development** - ensure access of members to proper nutrition, physical and mental health services and access to quality education.
  2. **Protection** - improve the safety of members and their protection against threats to their physical, social, and psychological well-being.
  3. **Service & Participation** - provide members with opportunities to be active participants in their barangays.
  4. **Ways & Means** - generation of resources for the sustainable growth and operations of the organization.

**SECTION 5. Qualifications. The Officers of the BCA, in addition to the qualifications to be a member of the BCA, must be:**

- a. within the ages of ten (10) and fourteen (14); and
- b. must provide permission to participate from their parents or guardian.

**SECTION 6. Term of Office.** The Officers of the BCA shall hold office for a fixed term of one (1) year.

**SECTION 7. BCA Federation.** There shall be an organization to be known as the "BCA Federation" composed of the Chairpersons of every BCA in the City of Biñan, Laguna. The BCA Federation shall elect amongst themselves a representative who shall serve as member of the Biñan City Council for the Protection of Children (BCCPC).

**SECTION 8. Advisers.** The CSWDO shall serve as the adviser of the BCA Federation and shall supervise the general implementation of this ordinance. The Barangay Chairpersons shall also serve as the adviser of the BCA within their respective barangays.

**SECTION 9. Funds.** Pursuant to Section 15 of RA 9344 otherwise known as the "Juvenile Justice and Welfare Act of 2006", one percent (1%) internal revenue allotment of barangays, municipalities, and cities shall be allocated for the strengthening and implementation of the programs of the LCPC. The implementation and operations of the BCA shall be sourced from this budget – the disbursement of which shall be made under the discretion of the LGU concerned – in addition to any other forms of revenue or resources acquired by the BCA through resource-generating projects and programs.

**SECTION 10. Separability Clause.** If, for any reason, any section or provision of this Ordinance is declared invalid or unconstitutional by the courts of competent jurisdiction, the other sections or provisions hereof not defected by such declaration shall remain in force and effect.

**SECTION 11. Repealing Clause.** All existing ordinances or parts thereof inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

**SECTION 12. Effectivity.** This Ordinance shall take effect immediately after its publication in a newspaper of general circulation or by posting it in at least three (3) conspicuous places within the city.

**UNANIMOUSLY APPROVED.**

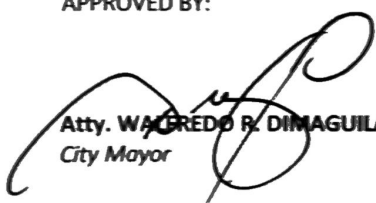
CERTIFIED CORRECT:

  
**GERONIMO D. ROMANTIGUE, MDMG**  
City Council Secretary

ATTESTED BY:

  
**Hon. ANGELO B. ALONTE**  
City Vice Mayor/Presiding Officer

APPROVED BY:

  
**Atty. WALFREDO R. DIMAGUILA, JR.**  
City Mayor